

**DEPARTMENT SEVEN  
JUDGE TIM P. KAM  
707-207-7307  
TENTATIVE RULINGS SCHEDULED FOR  
TUESDAY, SEPTEMBER 8, 2026**

***The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.***

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

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**BARCLAYS BANK DELAWARE vs. ANYA VALENTINE  
Case No. CL25-07493**

Petition to Compel Arbitration

**TENTATIVE RULING**

Defendant's petition to compel arbitration is granted.

Defendant has established that the parties agreed to arbitrate "any claim ... arising from or relating to" the cardmember agreement at the election of either party. (Decl. of Valentine, Exh. A.) Consequently, the burden shifted to Plaintiff to prove waiver or some other defense to the enforceability of the arbitration agreement. (Code Civ. Proc. § 1281.2; *Engalla v. Permanente Med. Group, Inc.* (1997) 15 Cal.4th 951, 972; *Vasquez v. Greene Motors, Inc.* (2013) 214 Cal.App.4th 1172, 1182.)

Plaintiff only claims that Defendant has waived the right to compel arbitration.

"To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it." (*Quach v. Cal. Commerce Club, Inc.* (2024) 16 Cal.5th 562, 584.) Plaintiff has failed to do so. Plaintiff merely argues that Defendant filing an answer, serving written discovery requests, and waiting four months from filing the answer to file the motion to compel arbitration constitute conduct inconsistent with an intent to enforce the contractual right to arbitrate. Plaintiff presents no evidence establishing that Defendant was aware of the arbitration provision before filing the answer or before

propounding her written discovery requests. Plaintiff presents no evidence that Defendant ever expressed any intent to relinquish her right to arbitration upon discovering her right to arbitration.

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**WELLS FARGO BANK, N.A. vs. KENT A. DOLL**  
**Case No. CL26-02857**

Motion to Deem Matters Admitted

TENTATIVE RULING

THE PARTIES ARE TO APPEAR. At the hearing, the Court's tentative ruling is as follows:

Plaintiff's motion to deem matters admitted is GRANTED. Each of the requests for admissions is deemed to be admitted.

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**TOYOTA MOTOR CREDIT CORPORATION vs. ERIKA HERRERAAVENDANO**  
**Case No. CL26-04575**

Motion to Set Aside and Vacate Dismissal

TENTATIVE RULING

THE PARTIES ARE TO APPEAR. At the hearing, the Court's tentative ruling is as follows:

Plaintiff's unopposed motion to set aside and vacate dismissal pursuant to CCP Section 473(b) is GRANTED. The matter is placed back on the civil active list for further proceedings.

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**JOSEPH GULLO vs. AHP SERVICING, LLC; ET AL.**  
**Case No. CU24-09570**

Plaintiff's Motion to Compel Further Responses

TENTATIVE RULING

Plaintiff JOSEPH GULLO's motion to compel further responses from Defendants AMROCK TITLE CALIFORNIA and LAND HOME FINANCIAL SERVICES, INC. is denied.

Plaintiff's motion improperly seeks to compel further responses from multiple parties in one motion. Plaintiff's initial motion did not include a separate statement of discovery requests at issue, as is required by Rule of Court 3.1345, and so did not allow Defendants an opportunity to respond to particular points of contention. Further, Plaintiff's declaration in support of motion does not sufficiently detail Plaintiff's efforts to meet and confer in good faith prior to filing a discover motion as it does not attach a copy of the meet and confer letter Plaintiff says he sent for examination, does not in the alternative specifically describe meet and confer efforts made, and does not sufficiently detail Defendants' responses, if any.

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**ELAINE SCIACCA; ET AL. vs. AHMED ALSHERIF**  
**Case No. CU26-02679**

Anti-SLAPP Motion

TENTATIVE RULING

THE PARTIES ARE TO APPEAR.

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Department 7 is inviting you to a scheduled ZoomGov meeting.  
Join ZoomGov Meeting

<https://solano-courts-ca-gov.zoomgov.com/j/1611554664?pwd=T3U4QIBGWWNWaGlieXJTcGxIVHRXZz09>

**Meeting ID: 161 155 4664**

**Passcode: 818575**

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